

YOWELL RANCH HOMEOWNERS' ASSOCIATION
SECRETARY'S CERTIFICATE

STATE OF TEXAS §
 §
 COUNTY OF BELL §

The undersigned hereby certifies that she is the duly elected, qualified and acting Secretary of Yowell Ranch Homeowners' Association, a Texas non-profit corporation ("Association"), and that:

1. Attached hereto is a true and correct copy of a Resolution of the Board of Directors of the Association approving the attached pool rules.

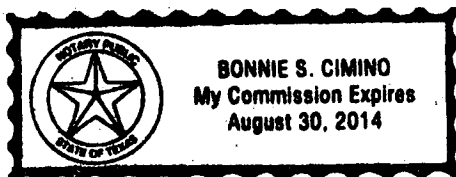
IN WITNESS WHEREOF, the undersigned has executed this certificate on the 14th day of September, 2011.

By: *Cindy Gaswint*
 Cindy Gaswint, Secretary
 Board of Directors

STATE OF TEXAS §
 §
 COUNTY OF BELL §

This instrument was acknowledged before me on the 20th day of September, 2011, by Cindy Gaswint, Secretary of the Board of Directors of Yowell Ranch Homeowners' Association on behalf of said non-profit corporation.

[SEAL]



Bonnie S. Cimino
 Notary Public, State of Texas

My Commission Expires: 8-30-2014

AFTER RECORDING RETURN TO:

✓ Bill Flickinger
 Willatt & Flickinger
 2001 North Lamar
 Austin, Texas 78705

2700
 5755
 (1)

**Resolution of the Board of Directors
for the Yowell Ranch Homeowners Association, Inc.**

August 22, 2011

The Board of Directors for The Yowell Ranch Homeowners Association Inc. (referred to as "Association") a Texas non-profit corporation, consent to the adoption of the following resolution:

RE: Pool Rules

WHEREAS:

1. One of the Association's functions as per the governing documents is to maintain the community pool that is located in the Yowell Ranch Homeowners Subdivision.
2. In order to protect the health and safety of everyone who uses the community pool the Board of Directors has adopted Pool Rules.

BE RESOLVED THAT:

1. The Pool Rules that the Board of Directors adopted are attached hereto as Exhibit "A".
2. The Pool Rules (attached as Exhibit "A") shall be the Association's policy for the community pool located in Yowell Ranch until they are amended.

EFFECTIVE:

August 23, 2011

Yowell Ranch Board of Directors or Representative

Signed 23rd day of August, 2011

By: _____

Stephen Ashlock

President

Yowell Ranch Homeowners Association

YOWELL RANCH HOA POOL RULES

3109 Malmaison
Killeen, TX 76542

The gates are to remain locked at all times. The pool can be accessed with a pool key card and under no circumstances should the gates be propped open. The fence and gate that surround the pool area are for resident protection. Pool users should not admit any person into the pool area, even if that person has a pool key card in his possession. If a pool key card does not work, the cardholder should contact RealManage.

PLEASE NOTE: Key cards will **ONLY** be activated for residents in good standing with the Association. To be in good standing, you must:

- 1) Be current on your assessments within 30 days of the due date;
- 2) Be in compliance with the Deed Restrictions (no more than one notice letter regarding a specific violation);
- 3) **AND** have a current pool waiver form on file with RealManage.

Lost key cards will be replaced for a fee of a minimum of \$25.00 (*subject to change*) and the lost key cards will be deactivated.

IDENTIFICATION

- Swimmers must have a pool key card with them to enter the pool area. The pool is for the use of Yowell Ranch Homeowners Association ("HOA") members and their invited guest(s)/appointed guardian(s) only. It is recommended that you write your name on your key so it does not get confused with others at the pool.
- Parents must provide written authorization naming a specific guardian to attend to their children 15 years of age and under while at the pool. Written permission from an adult member for a guardian to accompany a minor must be available for inspection upon request of an HOA representative or other adult member at all times while at the pool facility. Authorized guardians must be 18 years of age or older.

GENERAL REQUIREMENTS AND CONDUCT

Any individual(s) who are reported to be/or found to be in violation of any of these following pool rules will be reported to the Yowell Ranch Homeowners Association Board and possibly the City of Killeen Police Department and/or County Constable (as applicable). The nature of the situation will be considered and action(s) toward resolution will be at the board's discretion.

1. Use of any facility and equipment provided in this Amenity Center is at your discretion. Please use caution. **SWIM AT YOUR OWN RISK.**
2. There is **NO LIFEGUARD ON DUTY**. Children age 15 and under must be accompanied by an adult age 18 or older that is a Yowell Ranch Homeowners Association member or an appointed guardian.
3. Swimmers are encouraged to shower before entering the pool. Persons with open sores or wounds, bandages or communicable diseases are encouraged to refrain from swimming in the pool.
4. Do not use the pool if you or your child has had diarrhea in the previous two weeks. If a fecal contamination occurs, all swimmers must exit the pool immediately, and the pool will be closed for a minimum of twenty four (24) hours from the time the pool has been chemically treated. The pool will be cleaned, disinfected and tested, and proven to be free from contamination before the pool will be reopened. If your child is found to be responsible for a closure due to fecal matter, all costs to clean and reopen the pool may be assigned to your family. Incidents should be immediately reported to RealManage at 1-866-473-2573.
5. Children who are not toilet trained **MUST** wear a swim diaper. Diapers must also be changed in the restrooms, not outside in the pool or amenity center area.
6. The kiddie pool is reserved for children ages five (5) and under. Adult supervision is required at all times for children in the kiddie pool.

7. Under no circumstances shall pets, bicycles, skateboards, scooters or motorized cycles be permitted within the pool fences. Roller skates and/or rollerblades may be carried into the pool area and stored with personal belongings but may not be worn within the pool fences.
8. **Under no circumstances will alcohol, tobacco, firearms or drugs be permitted in the Amenity Center or surrounding areas. Any person(s) seen engaging in the use of such will be subject to loss of privileges for a period of time to be determined by the Association Board. Other legal actions may be taken in conjunction with the City of Killeen Police Department or the County Constable.**
9. NO GLASS containers of any type are allowed in the pool area.
10. Proper swim attire is required. No "cut-offs" or street clothes are allowed. Swimmers are encouraged to shower before entering the pool.
11. Running or speed walking within the pool area is prohibited.
12. Diving from the side of the pool is prohibited.
13. Music that is loud, offensive or otherwise inappropriate for a family setting is prohibited.
14. Flotation devices are permitted as long as there are less than 20 people in the pool. All air-inflatable crafts used must be a maximum 2-person carrier. No rafts, chairs, boats or any device larger than 2 feet by 3 feet will be permitted. Exceptions are arm-floaties and toddler carriers/life preservers.
15. Conduct by any person deemed to be dangerous, unreasonable, or offensive (including "horseplay" and language that is foul or otherwise inappropriate for a family setting) is prohibited.
16. No food is permitted within the pool area.
17. All trash generated by swimmers must be placed in garbage containers or otherwise disposed of properly.
18. Any items lost will be your responsibility. If the loss or find is of great value, please contact RealManage at 1-866-473-2573. Lost and found items will be donated to a local charity every two weeks.
19. Swim safely and treat others as you would like to be treated. Do not throw items when others are nearby. Parents are responsible for the behavior of their children. Please respect teachers and students involved in approved swim lessons.
20. In the event of inclement weather, swimmers are to clear the pool during the storm and for at least thirty (30) minutes after lightning and/or thunder has ceased. Patrons are welcome to stay in the pool area during this time, but are cautioned to stay a safe distance from the water.

ADDITIONAL RULES WHICH MAY BE POSTED AT SWIMMING POOL WILL ALSO APPLY

Infractions of these pool rules should be reported to the Pool Committee and/or RealManage at 1-866-473-2573. Any individual disciplined repeatedly, or for serious infractions, will lose all pool privileges for the season.

MISCELLANEOUS

Guest Policies

A Yowell Ranch Homeowners Association member must accompany a guest. Guests are limited to four (4) per family. If you need to entertain more than two guests, please call RealManage at 1-866-473-2573 to make arrangements at least one week in advance. Members are allowed to appoint a guardian for their needs as applicable. (Baby-sitters, relatives, family friends and neighbors are allowable.) Parents must provide written authorization naming a specific babysitter to attend to their children 15 years of age and under while at the Pool. Written permission from an adult member for a guardian to accompany a minor must be available for inspection upon request of a RealManage Staff Member or other adult member at all times while at the pool facility. Authorized babysitter must be 18 years of age or older. Individuals who may have been involved in misconduct or vandalism to the pool area who are found on the premises may be asked to leave immediately regardless of guest status if the board has given previous approval of such action. Individual(s) who are on the premises without permission or who are under the appointed age should be/can be asked to leave by any Yowell Ranch Homeowners Association member or appointed guardian who is an adult and on the premises. If the individual(s) will not leave, please contact the police from the pay phone located at the pool, then contact RealManage.

Non-Private Pool Parties

A one-time exemption per family, per season, to the above stated guest policy will be allowed whereby adult members of the Yowell Ranch HOA may hold a non-private pool party (i.e., children's birthday parties, Boy/Girl Scout troops). Non-private pool parties may be held between the hours of 11:00 a.m. and 6:00 p.m. on weekdays only (holidays and the day the pool is closed for cleaning excluded). **There shall be no more than fifteen (15) guests per party and parties must be limited to no longer than two and one half hours.** In the event of a children's function, there must be one adult for every three children for children ages zero (0) to three (3), and one adult for every five children for children ages seven (7) to twelve (12). In all events, one adult, age eighteen (18) or older must be present at all times. Non-private parties must be scheduled at least one (1) week

in advance through RealManage at 1-866-473-2573, and the sponsoring member must execute a Recreational Use Agreement at the time the party is scheduled. Immediately following the party, the sponsoring member is responsible to examine the area and make certain all furniture and equipment is returned to a neat order and all trash is disposed of properly. The sponsoring member will be responsible for any damages caused by the party patrons that occur during the party. **Members of the Yowell Ranch HOA and their invited guests should be aware that there is no lifeguard on duty and that they are swimming at their own risk.**

Pool key Cards

Pool key cards will be issued to adults (age 18 years and older) after an Acknowledgement & Waiver Form is signed. One pool key cards will initially be issued per household. If your key card is lost or stolen, you will be provided with a replacement key card AT A COST OF A MINIMUM OF \$25.00 (subject to change) to you and your old key card will be deactivated. **By signing the Acknowledgement and Waiver Form, members are agreeing not to distribute key cards to anyone outside their immediately family; violators may lose pool privileges for the season.** In order for a tenant to access the pool, a Release and Indemnity Agreement must be signed by both the homeowner and tenant. The homeowner is responsible to transfer his key to the tenant.

Restrooms

The restroom fixtures are sanitized and cleaned by a private janitorial service on a weekly basis. The designated maintenance person(s) are responsible for cleaning mirrors, counters, stocking paper products, emptying trash and hosing down the floors. But please be mindful of the other Association members by cleaning up after yourself when using the restrooms.

Pay Phone

911 services are available at the pay phone.

LOSS OF POOL PRIVILEGES

- Any resident who is 30 days or more past due in assessments, or who has an unresolved Deed Restriction Violation, will lose pool privileges until the account is brought current, or the deed restriction resolved.
- Any individual(s) using the pool after hours (see pool rules), or hopping the fence, may lose all pool privileges for the season. The Board will consider individual events.
- Any individual(s) committing acts of vandalism to the pool, pool house, equipment and/or surrounding area will lose all pool privileges for a period of time to be determined by the Association Board, and be held responsible for cleaning and/or repair of damaged items. In the event the individual(s) are juveniles, the parents shall assume full responsibility for their child's actions. The Board will consider individual events.

YOWELL RANCH POOL HOURS

- The pool is closed from 9:00 p.m. until 9:00 a.m.
- The pool is **CLOSED** on Tuesday, when chemicals are being adjusted.

Schedule of Operation WITHOUT lifeguards

Open Swimming (Adult Supervision required – access with pool key)		
May through September (weather permitting)	9:00 a.m. – 9:00 p.m. Closed Tuesday for Chemical Adjustments	Pool may be additionally closed for occasional regular or emergency maintenance

The swimming pool is normally CLOSED October through April.
Annual Pool Opening and Closing Dates are determined by your Board of Directors.



70 2011 00033241

Bell County
Shelley Coston
County Clerk
Belton, Texas 76513

Instrument Number: 2011-00033241

As

Recorded On: September 26, 2011

Recordings

Parties: YOWELL RANCH HOMEOWNERS ASSOCIATION

Billable Pages: 5

To EX PARTE

Number of Pages: 6

Comment:

(Parties listed above are for Clerks reference only)

**** Examined and Charged as Follows: ****

Recordings	27.00
Total Recording:	27.00

***** DO NOT REMOVE. THIS PAGE IS PART OF THE INSTRUMENT *****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.

File Information:

Document Number: 2011-00033241
Receipt Number: 115901
Recorded Date/Time: September 26, 2011 10:32:10A
User / Station: N Mitchell - Cash Station 2

Record and Return To:

WILLATT & FLICKINGER
2001 NORTH LAMAR
ATTN BILL FLICKINGER
AUSTIN TX 78705



I hereby certify that this instrument was filed on the date and time stamped hereon and was duly recorded in the Real Property
Records in Bell County, Texas

Shelley Coston
Bell County Clerk